

12	Deluhery vs. UCI Health 2024-01410575	Demurrer to Complaint Defendant Regents of the University of California’s unopposed Demurrer to Plaintiff Rod Deluhery’s Complaint is SUSTAINED. (Code Civ. Proc. §430.10. subd. (e).) Defendant demurs to the second cause of action for wrongful termination in violation of public policy. Subject to certain exceptions, Government Code section 815 “abolishes common law tort liability for public entities.” (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 899.) Government Code section 815 provides as follows: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person. Plaintiff does not identify any statutory basis for the second cause of action in the Complaint and has not opposed the demurrer. Accordingly, the demurrer is SUSTAINED. Plaintiff shall have 14 days to file a First Amended Complaint to allege a basis for Defendant’s liability as a public entity for this cause of action. Defendant shall provide notice.
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